
2:00 PM - **LINE 8**

25-CIV-09901

JANICE WILKINS VS. TAMMY SAMPEDRO, ET AL

JANICE WILKINS
TAMMY SAMPEDRO

KARMAN M. GUADAGNI
SARAH JANE TRUONG

PLAINTIFF'S MOTION FOR PREFERENTIAL TRIAL SETTING

TENTATIVE RULING:

Plaintiff Janice Wilkins' Motion for Preferential Trial Setting is **GRANTED**.

There is no dispute that plaintiff Janice Wilkins has met the standard set by subdivision (a) of Code of Civil Procedure, section 36 normally entitling a party to trial preference. As the plaintiff, Ms. Wilkins has a substantial interest in the action as a whole and the evidence submitted establishes that she is over seventy years of age and her health is such that a preference is necessary to prevent prejudicing her interest in the litigation. (Apr. 21, 2026 Declaration of Karman Guadagni, ¶¶ 3–5; Apr. 21, 2026 Declaration of Steven Fugaro, ¶¶ 1–3.)

Defendant LJ Care Services, Inc. (Firstlight) opposes the motion based on its desire to have its motion for summary judgment heard, and defendant Ernani Gabriel Navarro opposes based on his constitutional right against self-incrimination.

Firstlight has now filed its motion for summary judgment, currently set to be heard on January 6, 2027. Firstlight requests, in the event that the preference is granted, that the hearing on its motion be advanced to be heard before trial.

Given that the court grants the motion for preference, the trial date will be set for a date no more than 120 days after notice of entry of the formal order. (See Code Civ. Proc., § 36, subd. (f).) Courts are generally required to hear motions for summary judgment that are “timely filed,” and the motion was filed before any trial has been set. (*CFP BDA, LLC v. Superior Court* (2025) 112 Cal.App.5th 1006, 1011; accord, *Cole v. Superior Court* (2022) 87 Cal.App.5th 84, 88–89; *Sentry Ins. Co. v. Superior Court* (1989) 207 Cal.App.3d 526, 530.) Meanwhile, “trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 118.) It appears the earliest the pending motion for summary judgment may be heard is October 10, 2026.

Thus, Firstlight's alternative request to advance the hearing on the pending motion for summary judgment is granted and the hearing is advanced to October 28, 2026 at 2:00 in Department 28 at 800 North Humboldt Street, San Mateo, California.

As for Navarro's invocation of his Fifth Amended right, ordinarily, a civil trial court “has the authority and discretion” to delay discovery or trial or even stay a case before it “when the circumstances indicate that a stay is warranted[.]” (*People ex rel. Burns v. Wood* (2024) 103 Cal.App.5th 700, 712 (*Burns*); see Code Civ. Proc., §§ 128–130.) Pending civil and criminal

proceedings against the same defendant based on the same conduct are often among those circumstances. (*Burns, supra*, at p. 713.) “[T]here is an ‘inherent unfairness’ in requiring a party to simultaneously defend civil and criminal cases arising out of the same conduct because it ‘compels disclosure of a criminal defendant’s evidence and defenses before trial. Under these circumstances, the prosecution should not be able to obtain, through the medium of the civil proceedings, information to which it was not entitled under the criminal discovery rules.’” (*Ibid.*, brackets in original omitted, quoting *Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690.)

In exercising its discretion in a particular case, a trial court should “should consider the extent to which the defendant’s fifth amendment rights are implicated. In addition, the decisionmaker should generally consider the following factors: (1) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending civil and criminal litigation.” (*Burns, supra*, 103 Cal.App.5th at pp. 713–714, cleaned up.) However, “the court has no absolute obligation to stay a civil case whenever a parallel criminal case is pending.” (*Id.*, at p. 712.)

Moreover, notwithstanding the *Burns* factors, once the court grants the motion for trial preference, the “court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days . . .” (Code Civ. Proc., § 36, subd. (f).) The court cannot exercise discretion and defy the legislative command.

Accordingly, the motion is granted. Trial will be set no later than 120 days after notice of entry of the formal order.

Finally, given Ms. Wilkins’s apparent cognitive issues, the court questions her ability to participate meaningfully in the prosecution of this lawsuit. The parties are **ORDERED TO APPEAR** at a case management conference on August 12, 2026, at 9:00 a.m., in Department 28, and plaintiff’s counsel is directed to advise the court whether they will seek appointment of a guardian ad litem for Ms. Wilkins.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM - LINE 9

25-CLJ-02194

MICHAEL WASILEWSKI VS. RENEE HANSEMANN, ET AL

MICHAEL WASILEWSKI
RENEE HANSEMANN

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MOTION FOR LEAVE TO AMEND REQUEST TO FILE OPPOSITION TO DEMURRER DUE TO "BAD FAITH"

TENTATIVE RULING:

Plaintiff's motion is **DENIED as moot**. The court heard defendant's demurrer on February 18, 2026. The minutes show that plaintiff was present in person and defendant State Farm's counsel appeared by Zoom.

Before the hearing, the court issued a tentative ruling, which it adopted at the hearing. The tentative ruling provided in part that "[d]efendant State Farm General Insurance Company's demurrer to plaintiff Michael Wasilewski's complaint is SUSTAINED with leave to amend. Any amended complaint must be filed within ten (10) days of notice of entry of the formal order" and further required defendant's counsel to prepare the formal order.

Code of Civil Procedure, section 472b states in pertinent part that "[w]hen a demurrer to any pleading is sustained or overruled, and time to amend or answer is given, the time so given runs from the service of notice of the decision or order, unless the notice is waived in open court, and the waiver entered in the minutes." Defendant's counsel did not submit a formal order for the court's signature. Instead, defendant served notice of the tentative ruling, which the court adopted in full at the hearing. In future, defendant's counsel is reminded to submit the proposed order for the court's signature. Notwithstanding that the court did not sign the tentative ruling, that was the court's order and plaintiff had notice, both at the hearing and pursuant to notice of entry of the order on the tentative ruling, that the demurrer was sustained with leave to amend. Plaintiff has not filed a first amended complaint, and the time to do so has long since run.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant State Farm's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.